

ADDENDUM NO. 3

Issued 1 November 2026
Tender NUPA/ISTP/2026/014

Wadi Sirhan Independent Sewage Treatment Plant

This Addendum amends the definition of Working Day and notifies a closure of the Authority's offices, requires the proposed O&M Operator to be a member of the Bidder, replaces the fourth declaration in Form 4-C, amends Volume II Table 2-4, deletes Volume V Clause 31.4, reissues Form 4-G, and responds to clarification requests 15 to 19. The closure of the Authority's offices does not affect any deadline under the RFP Documents.

This Addendum forms part of the RFP Documents and takes precedence in accordance with Volume I Clause 3.2. Bidders shall acknowledge receipt in Form 4-A. All other terms of the RFP Documents remain unchanged.

1. RECITALS

- 1.1 This Addendum is issued under Volume I Clause 5.3 and takes precedence over Addenda Nos. 1 and 2 in accordance with Volume I Clause 3.2.
- 1.2 A reference in this Addendum to a Clause, Table or Form is to that Clause, Table or Form as amended by Addenda Nos. 1 and 2, unless otherwise stated.

2. WORKING DAYS AND CLOSURE OF THE AUTHORITY'S OFFICES

- 2.1 In Volume I Clause 2.4, 'other than a day declared a public holiday in the Kingdom' is deleted and '**other than a day declared a public holiday in the Kingdom or a day notified by the Authority in an Addendum as a day on which its offices are closed**' is substituted. The second sentence of Clause 2.4 is unchanged.
- 2.2 The Authority's offices will be closed on **Sunday 22 November 2026**. That day is notified for the purposes of Volume I Clause 2.4 as amended by Section 2.1. The Portal will remain available on that day.

3. MEMBERSHIP OF THE O&M OPERATOR

- 3.1 Volume I Clause 8.8 is amended by adding at the end: '**The proposed O&M Operator shall be a member of the Bidder and shall hold, from Financial Close until the second anniversary of PCOD, not less than ten per cent (10%) of the shares in the Project Company.**'
- 3.2 A Bidder whose proposed O&M Operator is not a member of the Bidder shall apply through the Portal for the Authority's consent under Volume I Clause 8.1 to the admission of the O&M Operator as a member, not later than **four (4) Working Days before the Proposal Due Date**.
- 3.3 A Bidder that intends to apply under Section 3.2 shall notify the Authority of that intention through the Portal within **five (5) Working Days of the date of this Addendum**.
- 3.4 If, at any time before the Preferred Bidder Notification, the proposed O&M Operator ceases to be a member of the Bidder, the Bidder shall notify the Authority through the Portal within two (2) Working Days of that event. Volume I Clause 8.1 applies.

4. AMENDMENT TO FORM 4-C

- 4.1 In Form 4-C, the fourth numbered declaration, which as issued reads as follows, is deleted:

رابعاً: أن جميع المعلومات المقدمة في هذا العرض صحيحة وكاملة، ونذكر أن أي بيان غير صحيح يؤدي إلى استبعاد العرض.

4.2 The following fourth declaration is substituted:

رابعاً: أن جميع المعلومات المقدمة في هذا العرض صحيحة وكاملة، ونتعهد بإخطار الهيئة عبر البوابة خلال ثلاثة أيام عمل من تاريخ علمنا بأي تغيير يطرأ على أي من تلك المعلومات قبل صدور إشعار مقدم العرض المفضل، ونذكر أن أي بيان غير صحيح أو أي إخلال بهذا التعهد يؤدي إلى استبعاد العرض.

4.3 An English translation of the substituted declaration is given below for convenience only. The Arabic text governs, in accordance with Volume I Clause 9.4.

‘Fourth: that all the information provided in this Proposal is correct and complete; that we undertake to notify the Authority through the Portal within three (3) days of the date on which we become aware of any change to any of that information before the issue of the Preferred Bidder Notification; and that we understand that any incorrect statement, or any breach of this undertaking, will lead to the exclusion of the Proposal.’

4.4 Each member of the Bidder shall give the fourth declaration as substituted. A Form 4-C that contains the fourth declaration as issued is not a properly executed Form 4-C for the purposes of Volume I Clause 9.4.

5. AMENDMENT TO VOLUME II TABLE 2-4

5.1 In Volume II Table 2-4, in the row for Total Phosphorus (TP), the limit is amended from 1 mg/l to **0.5 mg/l**. The unit and the basis of assessment (30-day rolling average) are unchanged. All other entries in Table 2-4, including the Total Nitrogen limit as amended by Addendum No. 2, are unchanged.

5.2 Bidders shall reflect the amended limit in the process design submitted under Volume II Section 3.

6. AMENDMENTS TO VOLUME V

6.1 In Volume V Clause 29.3, ‘ninety per cent (90%)’ is deleted and ‘**eighty-five per cent (85%)**’ is substituted. The duration of the Ramp-Up Period is unchanged.

6.2 Volume V Clause 31.4 is **deleted** in its entirety. Volume V Clause 39.3, which provides for termination for persistent breach in the circumstances described in Clause 31.4, is also deleted. The remaining Clauses of Volume V are not renumbered.

7. REISSUED FORM 4-G

7.1 Form 4-G, added to Volume IV by Section 7 of Addendum No. 2, is deleted and replaced by the reissued Form 4-G at Appendix A to this Addendum, which provides for its countersignature by the proposed O&M Operator. Bidders shall use the reissued Form.

7.2 Section 7.2 of Addendum No. 2 applies to the reissued Form 4-G. **A Form 4-G that is not countersigned by the proposed O&M Operator shall be treated as not submitted.**

8. RESPONSES TO CLARIFICATION REQUESTS 15 TO 19

No	Bidder question	Authority response
15	Response 9 in Addendum No. 2 states that an English translation of Form 4-C may be attached for convenience. Must a translation be attached where the member is incorporated outside the Kingdom?	Yes. The response to clarification request 9 in Addendum No. 2 is amended by adding at the end: ‘A member incorporated outside the Kingdom shall attach an English translation to its Form 4-C.’ The Arabic text of Form 4-C governs in accordance with Volume I Clause 9.4.
16	May construction water be abstracted from the local aquifer if it is treated on site before use?	No. Volume II Clause 9.4 applies. Construction water shall be sourced from tankered supply or treated effluent and shall not be abstracted from the local aquifer, whether or not it is treated before use.
17	Volume I Clause 8.1 requires the Authority's prior written consent to any change in the composition of a prequalified consortium. By when must a Bidder apply for consent to admit an additional member?	Bidders are referred to Section 3 of this Addendum. An application for consent to the admission of the proposed O&M Operator as a member of a Bidder shall be submitted through the Portal not later than Sunday 22 November 2026.

No	Bidder question	Authority response
18	Under Volume V Clause 31.4, does the rolling ninety (90) day period restart once the Authority has approved a remediation plan?	Volume V Clause 31.4 is deleted by Section 6.2 of this Addendum. The question does not arise.
19	May the lead member give the declarations in Form 4-C on behalf of all members of the Bidder?	No. Volume I Clause 9.4 requires a complete and properly executed Form 4-C for each member of the Bidder, signed and stamped by an authorised signatory of that member.

FICTIONAL — ASSESSMENT PACK

APPENDIX A — REISSUED FORM 4-G

Form 4-G is reissued below in accordance with Section 7 of this Addendum. Bidders shall use this version.

FORM 4-G — CYBERSECURITY COMPLIANCE UNDERTAKING

Item	Undertaking	Confirmed
1	The operational technology environment will be segregated from any business network in accordance with Volume II Clause 6.2.	Yes / No
2	An information security management system covering the operational technology environment will be implemented before commissioning.	Yes / No
3	A named accountable security officer will be appointed for the concession period.	Yes / No
4	Security incidents affecting the Facility will be notified to the Authority within twenty-four (24) hours of detection.	Yes / No
5	An independent penetration test of the operational technology environment will be carried out annually and the report provided to the Authority.	Yes / No
6	Remote access to the control system will require multi-factor authentication and will be logged.	Yes / No
7	Personnel with privileged or remote access to the control system will be subject to security screening approved by the Authority before access is granted.	Yes / No

Signed for and on behalf of the Bidder: _____ Name: _____ Date: _____

Countersigned for and on behalf of the proposed O&M Operator: _____ Name: _____
 _____ Date: _____